



CHAPTER 45.

An Act to extend the third fixed grant period under the Local Government (Scotland) Act, 1929, and to make provision for the stabilisation of Supplementary Exchequer Grants under the said Act; and for purposes connected with the matters aforesaid.

[2nd October 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The third fixed grant period, that is to say, the period for which the amount of the General Exchequer Contribution to be paid under section fifty-three of the Local Government (Scotland) Act, 1929 (in this Act referred to as "the principal Act") was fixed by the Local Government (Financial Provisions) (Scotland) Act, 1937, shall be extended so as to continue until such date after the expiry of the Emergency Powers (Defence) Act, 1939, as Parliament may hereafter determine, and references to the third or any subsequent fixed grant period, whether express or implied in the principal Act, in the said Act of 1937, in any other enactment, and in any order, regulations, or scheme or other instrument made under any enactment including (unless the contrary intention appears therein) an enactment or instrument passed or made after the date of the passing of this Act, shall be construed accordingly.

Extension of
third fixed
grant period
under 19 & 20
Geo. 5. c. 25.
1 Edw. 8 &
1 Geo. 6. c. 29.
2 & 3 Geo. 6.
c. 62.

2. For the sixth and each succeeding year of the third fixed grant period—

Stabilisation.
of Supple-
mentary
Exchequer
Grants.

- (a) the amount to be credited under paragraph (b) of sub-section (1) of section sixty of the principal Act to any separately rated area, and

- (b) the amount to be paid under paragraph (b) of subsection (1) of section sixty-three of the principal Act to the council of a large burgh,

shall, notwithstanding the provisions of those paragraphs respectively as to the annual reduction of such amounts, and notwithstanding the provisions of section five of the Local Government (Financial Provisions) (Scotland) Act, 1937, be the same as that which fell to be so credited or paid as the case may be for the fifth year of that period :

Provided that this section shall have effect subject to the provisions of section sixty-six of the principal Act (which confers on the Secretary of State a power to reduce grants in circumstances therein mentioned).

Short title,
construction
and citation.

3.—(1) This Act may be cited as the Local Government (Financial Provisions) (Scotland) Act, 1941, and shall be construed as one with Part III of the principal Act, and this Act and the Local Government (Scotland) Acts, 1929 and 1937, may be cited together as the Local Government (Scotland) Acts, 1929 to 1941.

(2) References in this Act to any enactment or to any provision of any enactment shall, unless the context otherwise requires, be construed as references to that enactment or provision as amended by any subsequent enactment including this Act.

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